10 WAYS TO IMPROVE Juvenile Justice

Ten evidence-informed directions for keeping children out of the justice system – and helping those already in it.

> *One of the biggest predictors of future imprisonment is age of first imprisonment.*
>
> **There are alternatives.**

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01 Justice Reinvestment

Invest in the community rather than in prisons.

First, invest in communities that need more housing, welfare assistance, educational support, and employment opportunities. Second, put money into helping specific individuals and groups of individuals who could use this support (therapeutic responses).

02 Restorative Justice

Put repairing harm at the centre of justice processes.

Accountability of children for their actions, as well as the responsibility of governments to care for them. Putting repairing harm at the centre translates into activities that treat offenders as active, is strengths-based and includes responses that advantage victims and communities.

03 Child- and Youth-Centred

Put children and young people at the centre of the process.

The focus should be on the child's past experiences, developmental opportunities and life prospects. Locate children in their social milieux and ecology – family, friends, peers, community, neighbourhood – and strengthen positive ties and resilience.

04 Therapeutic Jurisprudence

Address underlying problems and co-morbidities.

Courts and community corrections, in conjunction with community partners and collaborators, can make a difference by changing the conditions that underpin much repeat offending, especially in regard to substance use and mental illness.

05 Trauma-Informed Approaches

Recognise and respond to grief and pain.

Most offenders are victims of physical and sexual assault, and many also suffer from intergenerational grief related to government policies and practices (e.g. Indigenous communities and the Stolen Generations). Incorporate trauma-informed care.

06 Mentoring

Link people to those they respect and will emulate.

For young people and adults alike, individual change often comes from being with someone you respect, whether this is an elder, friend, sportsperson or teacher. Mentors can provide support and be excellent role models.

07 Raise the Age of Criminal Responsibility

Keep people out of criminal justice.

One of the biggest predictors of future imprisonment is age of first imprisonment. To keep prison numbers down, keep children and young people out of prison in the first place – there are alternatives.

08 Systems of Accountability

Rights protection.

Resources need to be put into monitoring and responding to system operations and standard operating procedures, whether through official visitor programs, OPCAT, the Ombudsman or the Commissioner for Children and Young People.

09 Victim Engagement

Mechanisms for active participation and meeting needs.

Victim voices need to be heard in the criminal justice system – not just in court proceedings, but in increasing offender understanding and empathy through exposure to victims' experiences of harm, including victim panels.

10 Integrated Offender Management

Provide extensive throughcare support.

Developmental approaches require support and encouragement at all stages of official contact – from police to detention to post-release – into safe, welcoming and positive environments.